

Amendment No. 1 to SB0416

White
Signature of Sponsor

AMEND Senate Bill No. 416

House Bill No. 380*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-2206(a), is amended by deleting the subsection and substituting the following as a new subsection (a):

(a) An LEA shall not use or permit to be used in any school, including virtual schools, any textbooks and instructional materials upon any subject to the exclusion of the textbooks and instructional materials listed by the commission and approved by the state board of education; provided, that this prohibition does not apply to textbooks and instructional materials previously listed and purchased with public funds. Upon application of the local board of education, the state board of education may waive this restriction for any school, including virtual schools, when, in the state board's judgement, the unique or unusual needs of the LEA require it. In making waiver determinations, the state board of education must receive assistance from the department of education. The state board shall outline in its rules specific timeframes when waiver applications may be submitted by a local board of education for any school, including virtual schools; provided, that the state board of education shall allow applications to be submitted outside of the established timeframes in emergency circumstance, as defined by the state board in its rules. The state board is authorized to establish a separate timeframe for virtual schools to submit a waiver application pursuant to subsection (e). A public charter school may request a waiver for the use of textbooks and instructional materials in accordance with § 49-13-111.

SECTION 2. Tennessee Code Annotated, Section 49-6-2206, is amended by adding the following as a new, appropriately designated subsection:

(1) All virtual schools established by an LEA shall use a curriculum and instructional materials that meet or exceed the academic standards adopted by the state board of education. Notwithstanding subsection (a), the state board of education shall not waive this requirement upon the application of a virtual school.

(2)

(A) Each LEA that has established a virtual school may apply to the state board of education for a waiver from the prohibition in subsection (a) against using textbooks and instructional materials upon any subject to the exclusion of the textbooks and instructional materials listed by the commission and approved by the state board of education. In addition to any other information required by the state board of education to complete a waiver application, the LEA shall include a verification of the academic standards adopted by the state board of education alignment for the courses requested in the waiver application. The state board of education shall review each completed waiver application and, if the verification of academic standards alignment included with the application is complete and meets or exceeds the academic standards adopted by the state board of education, approve the application for use of the virtual school instructional materials submitted. The state board may promulgate rules to effectuate the implementation of this waiver application for virtual school instructional materials. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(B) The department of education shall post on its website all waiver applications that are approved by the state board of education under subdivision () (2) (A).

(3) This subsection () terminates on January 1, 2028. No later than January 1, 2028, the state board of education shall report to the members of the general assembly a plan for approving virtual school instructional materials and any statutory changes that are necessary to adopt the plan.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.